

SENATE No. 2217

The Commonwealth of Massachusetts

PRESENTED BY:

Michael F. Rush

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act improving the usage of state property.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael F. Rush</i>	<i>Norfolk and Suffolk</i>	
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>1/23/2025</i>

SENATE No. 2217

By Mr. Rush, a petition (accompanied by bill, Senate, No. 2217) of Michael F. Rush and William F. MacGregor for legislation to transfer a parcel of state property in the West Roxbury section of the city of Boston. State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act improving the usage of state property.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law, the parcel of land of the
2 commonwealth specifically described herein, situated in the city of Boston, having been acquired
3 by the commonwealth and currently under the care and control of the Department of
4 Conservation and Recreation, is hereby transferred to the The Gardens Cemetery, at the cost of
5 fair market value, for expansion of the cemetery for burial purposes. Said parcel located off
6 Baker Street in the West Roxbury section of said city is shown Parcel D on a plan to be recorded
7 with the Suffolk county registry of deeds entitled "Plan of Land of the Association of the
8 Evangelical Lutheran Church for Works of Mercy"; By W.O. Badger, Surveyor, 1900; Scale: 1
9 inch = 20 Feet"; Recorded at the Suffolk County Registry of Deeds in Bk 2743 Pg 307

10 Beginning at a point on the westerly boundary; thence

11 N 82° 56' 24" W a distance of one thousand two hundred feet (1200') to a point; thence

12 N 51<= 40' 37" W a distance of eight hundred sixty-one and six tenths (861.60') to a
13 point; thence

14 N 38<= 19' 23" E a distance of one thousand seven hundred eighty three and thirteen
15 hundredths feet (1783.13') to a point; thence

16 S 51<= 40' 37" E a distance of one hundred sixty five feet (165') to a point; thence

17 S 55<= 28' 42" E a distance of two hundred thirty nine and twenty four hundredths feet
18 (239.24') to a point; thence

19 S 50<= 25' 05" E a distance of twenty and sixty seven hundredths feet (20.67') to a point;
20 thence

21 S 50<= 18' 15" E a distance of three hundred seventy eight and four tenths feet (378.4') to
22 a point; thence

23 N 37<= 04' 41" E a distance of six hundred ninety and ninety nine hundredths feet
24 (690.99') to a point; thence

25 N 39<= 18' 21" E a distance of one thousand one hundred eighty two and fifty nine
26 hundredths feet (1182.59) to a point; thence

27 N 40<= 04' 39" E a distance of five hundred thirty three and fifty five hundredths feet
28 (533.55') to a point; thence

29 S 54<= 29' 25" E a distance of four hundred forty seven and ninety two hundredths feet
30 (447.92') to a point; thence

31 S 48<= 24' 16" W a distance of one hundred eighty seven and forty six hundredths feet
32 (187.46') to a point; thence

33 S 39<= 30' 42" W a distance of eighty nine and sixty one hundredths feet (89.61') to a
34 point; thence

35 N 50<= 29' 20" W a distance of fifty feet (50') to a point; thence

36 S 39 <= 30' 42" W a distance of sixty feet (60') to a point; thence

37 S 50<= 29' 20" W a distance of fifty feet (50') to a point; thence

38 S 39<= 30' 42" W a distance of fifty feet (50') to a point; thence

39 S 17<= 56' 15" W a distance of five hundred nine and seventy eight hundredths feet
40 (509.78') to a point; thence

41 S 26<= 51' 55" W a distance of one hundred fifty four and eight hundredths feet (154.08')
42 to a point; thence

43 N 63<= 55' 38" W a distance of one hundred eighty one and twenty eight hundredths feet
44 (181.28') to a point; thence

45 S 83<= 32' 57" W a distance of eighty and sixty seven hundredths feet (80.67') to a point;
46 thence

47 S 48<= 45' 35" W a distance of two hundred eighty two and eleven hundredths feet
48 (282.11') to a point; thence

49 N 81<= 44' 40" W a distance of thirty five and seven hundredths feet (35.07') to a point;
50 thence

51 S 67<= 12' 43" W a distance of fifty six and four tenths feet (56.4') to a point; thence

52 S 33<= 22' 46" W a distance of three hundred twenty one and twenty six hundredths feet
53 (321.26') to a point; thence

54 S 46 <= 32' 17" W a distance of eighty eight and fifty two hundredths feet (88.52) to a
55 point; thence

56 S 02<= 26' 12" E a distance of ninety four and eight hundredths feet (94.08') to a point;
57 thence

58 S 47<= 25' 11" E a distance of fifty and twenty five hundredths feet (50.25') to a point;
59 thence

60 S 21<= 48' 05" E a distance of forty three and eight hundredths feet (509.78') to a point;
61 thence

62 S 06<= 45' 32" W a distance of one hundred thirty six feet (136') to a point; thence

63 S 26<= 52' 12" E a distance of eighty four and eight hundredths feet (84.08') to a point;
64 thence

65 S 65<= 38' 42" E a distance of two hundred sixty six and seventy four hundredths feet
66 (266.74') to a point; thence

67 S 89 <= 27' 53" E a distance of one hundred nine and ninety nine hundredths feet
68 (109.99) to a point; thence

S 36 $\leq$ 16' 26" E a distance of one hundred thirty five and twenty four hundredths feet
(135.24') to a point; thence

The above described parcel of land contains an area of 1,372,670+ square feet or 31.512
acres as shown on said plan. For title reference, see "Plan of Land of the Association of the
Evangelical Lutheran Church for Works of Mercy"; By W.O. Badger, Surveyor, 1900; Scale: 1
inch = 20 Feet"; Recorded at the Suffolk County Registry of Deeds in Bk 2743 Pg 307

SECTION 2. Notwithstanding any general or special law, the parcel of land of the
commonwealth specifically described herein, situated in the city of Boston, having been acquired
by the commonwealth and currently under the care and control of the Department of
Conservation and Recreation, is hereby transferred to the The Gardens Cemetery, for the cost of
fair market value, for expansion of the cemetery for burial purposes. Said parcel located off
Baker Street in the West Roxbury section of said city is shown Parcel E on a plan to be recorded
with the Suffolk county registry of deeds entitled "Plan of Land of the Association of the
Evangelical Lutheran Church for Works of Mercy"; By W.O. Badger, Surveyor, 1900; Scale: 1
inch = 20 Feet"; Recorded at the Suffolk County Registry of Deeds in Bk 2743 Pg 307

Beginning at a point on the easterly boundary of the Commonwealth of Massachusetts;
thence

N 25 $\leq$ 52' 06" E a distance of one hundred forty plus or minus feet (140+) to a point;
thence

N 41 $\leq$ 45' 40" E a distance of one hundred forty seven and four hundredths feet
(147.04) to a point; thence

90 N 16<= 46' 51" E a distance of three hundred eighty four and seven tenths feet (384.70')
91 to a point; thence

92 S 57<= 34' 36" E a distance of three hundred forty seven and six tenths feet (347.60') to a
93 point; thence

94 S 32<= 25' 24" W a distance of seven hundred seventy one and sixty five hundredths feet
95 (771.65') to a point; thence

96 N 52<= 12' 37" W a distance of one hundred thirteen and nine tenths feet (113.90') to a
97 point; thence

98 N 14<= 00' 26" E a distance of eighty and thirty six hundredths feet (80.36') to a point;
99 thence

100 The above described parcel of land contains an area of 204,583+ square feet or 4.697
101 acres as shown on said plan. For title reference, see "Plan of Land of the Association of the
102 Evangelical Lutheran Church for Works of Mercy"; By W.O. Badger, Surveyor, 1900; Scale: 1
103 inch = 20 Feet"; Recorded at the Suffolk County Registry of Deeds in Bk 2743 Pg 307